

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Isabelle James	Team: Squad #09	CCRB Case #: 201700092	☐ Force ☒ Discourt. ☐ U.S. ☐ Abuse ☐ O.L. ☐ Injury
Incident Date(s) Saturday, 10/22/2016 2:30 AM	Location of Incident: the corner of 83rd Street and 6th Avenue and inside the 68th Precinct stationhouse	18 Mo. SOL 4/22/2018	Precinct: 68
Date/Time CV Reported Wed, 01/04/2017 11:30 AM	CV Reported At: CCRB	How CV Reported: On-line website	Date/Time Received at CCRB Wed, 01/04/2017 11:30 AM

Complainant/Victim	Type	Home Address

Witness(es)	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. SGT Alexi Serpani	03257	942535	068 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. SGT James Wilson	04677	942713	068 PCT
2. POM Alexander Arasin	10070	947972	068 PCT
3. POM Rongshong Xian	13943	943970	068 PCT
4. LT Idris Guven	00000	936720	068 PCT
5. POM Azeem Chatha	13036	957449	068 PCT
6. POM Nabil Laafar	15663	944101	068 PCT

Officer(s)	Allegation	Investigator Recommendation
A . SGT Alexi Serpani	Discourtesy: Sergeant Alexi Serpani spoke discourteously to § 87(2)(b)	A . Unsubstantiated
B . SGT Alexi Serpani	Discourtesy: Sgt. Alexi Serpani gestured discourteously toward § 87(2)(b)	B . Unsubstantiated

Case Summary

On January 4, 2017, § 87(2)(b) filed this complaint with the CCRB via the on-line complaint form.

On October 22, 2016, at approximately 2:15 a.m., § 87(2)(b) and her mother, § 87(2)(b) exited the Full Moon Saloon, located at 8309 5th Avenue in Brooklyn, and engaged in a physical altercation with an intoxicated female individual outside the bar. Both § 87(2)(b) and § 87(2)(b) were attacked by the female individual and sustained injuries as a result of the altercation. § 87(2)(b) and § 87(2)(b) ultimately were able to break free of the female individual with the help of § 87(2)(b), and walked around the corner, along 83rd Street towards 6th Avenue.

At the corner of 83rd Street and 6th Avenue, § 87(2)(b) and § 87(2)(b) saw flashing lights and a marked police car pull up next to them. Two officers, Sergeant Alexi Serpani and Police Officer Nabil Laafar of the 68th Precinct, exited the car and approached § 87(2)(b) and § 87(2)(b). A short while later, a second marked police car arrived on the corner and two additional officers, Lieutenant Idris Guven and Police Officer Azeem Chatha of the 68th Precinct, approached Sgt. Serpani, § 87(2)(b) and § 87(2)(b). Sgt. Serpani approached § 87(2)(b) and § 87(2)(b) and allegedly called § 87(2)(b) a "low-life § 87(2)(b)" after she identified herself as a § 87(2)(b) (**Allegation A**). After another marked police car drove by the corner with an individual seated in the back of the car, presumed by § 87(2)(b) to be a witness, Lieutenant Guven instructed Sgt. Serpani to arrest both § 87(2)(b) and § 87(2)(b). § 87(2)(b) § 87(2)(b)'s friend, arrived at the corner as § 87(2)(b) and her mother were being placed under arrest and was able to record the end of § 87(2)(b) and § 87(2)(b) interaction with the officers before they were placed in the back of a police car.

§ 87(2)(b) and § 87(2)(b) were then taken to the 68th Precinct stationhouse. While inside the stationhouse, Sgt. Serpani went through § 87(2)(b) bag to voucher her belongings. Sgt. Serpani allegedly pulled out the set of handcuffs she keeps inside her bag and held them in front of her face, swung the handcuffs, and said, "You won't be needing these now" (**Allegation B**). § 87(2)(b) and § 87(2)(b) were ultimately charged with § 87(2)(b).

§ 87(2)(b) waited to file this complaint with the CCRB until after § 87(2)(b) and her criminal cases were settled. § 87(2)(b) was able to provide the investigation with a copy of the video taken by § 87(2)(b) of the end of § 87(2)(b) and § 87(2)(b) interaction with the officers on October 22, 2016. No allegations are shown in the video. A snagged portion of the video is embedded below. The video can also be found and viewed in IA #57 (**Board Review 1**).



201700092_20170119_1022_DM.mp4

Mediation, Civil and Criminal Histories

- This case was ineligible for mediation due to § 87(2)(b)s and § 87(2)(b) arrest. Additionally, § 87(2)(b) alleged that her handcuffs and a family heirloom were not returned to her. § 87(2)(g)
- On February 14, 2017, a Freedom of Information Law request was made of the New York City Comptroller's Office for any Notice of Claim filed in regard to this incident (**Board Review 2**). The results will be added to the case file upon receipt.
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Civilian and Officer CCRB Histories

- § 87(2)(b) has no prior CCRB complaints (**Board Review 5**)
- § 87(2)(b) has no prior CCRB complaints (**Board Review 6**).
- Sgt. Serpani has been a member of the NYPD for ten years and has one prior CCRB complaint made against him, case number 201505360. It was alleged that Sgt. Serpani refused to provide his name and shield number and the case was closed as unsubstantiated.

Findings and Recommendations

Allegations not pleaded:

Abuse of Authority: Threat of Arrest

In her in person statement to the CCRB on January 12, 2017, § 87(2)(b) alleged that, when she was being handcuffed, she heard Sgt. Serpani say to § 87(2)(b) "If you keep recording, you're going to end up over here too." However, in § 87(2)(b)s phone statement on January 17, 2017, § 87(2)(b) did not allege that Sgt. Serpani ever made that statement or threatened to arrest her. She stated that Sgt. Serpani only asked her to back away from § 87(2)(b) and § 87(2)(b) while they were being handcuffed. § 87(2)(g)

§ 87(2)(g)

Allegation A: Sergeant Alexi Serpani spoke discourteously to § 87(2)(b)

It is undisputed that Sgt. Serpani approached and ultimately arrested § 87(2)(b) and § 87(2)(b) on October 22, 2016 at approximately 2:35 a.m. because they were involved in a

physical altercation that occurred outside 8309 Fifth Avenue at approximately 2:30 a.m. After stopping § 87(2)(b) and § 87(2)(b) and § 87(2)(b) testified that § 87(2)(b) identified herself to Sgt. Serpani as an officer and that she did not want to cause any trouble for the officers (**Board Review 7** and **Board Review 8**). Both § 87(2)(b) and § 87(2)(b) testified that in response Sgt. Serpani stated, “Oh yeah, what kind of officer are you?” Both women described Sgt. Serpani’s tone to be sarcastic and combative. § 87(2)(b) then attempted to explain to Sgt. Serpani that her § 87(2)(b) officer identification card was in her bag, which had been left back at the bar, and repeated that she did not want to cause trouble. § 87(2)(b) and § 87(2)(b) both testified that Sgt. Serpani then replied, “Yeah whatever. You’re just a low-life § 87(2)(b).”

§ 87(2)(b) § 87(2)(b) s friend who had previously been at the bar with § 87(2)(b) and § 87(2)(b) had not yet arrived at the corner of 83rd Street and 6th Avenue and therefore did not corroborate hearing Sgt. Serpani make that statement. § 87(2)(b) stated that she had begun filming § 87(2)(b) and § 87(2)(b) s interaction with the officers immediately upon arriving at the corner of 83rd Street and 6th Avenue. The video taken by § 87(2)(b) and provided to the investigation by § 87(2)(b) did not show Sgt. Serpani interacting with either § 87(2)(b) or § 87(2)(b)

While Sgt. Serpani was speaking to § 87(2)(b) and § 87(2)(b) other officers arrived at the scene, specifically Lt. Guven and PO Chatha. § 87(2)(g)

§ 87(2)(b) Lt. Guven testified that he did not hear Sgt. Serpani call § 87(2)(b) a low-life § 87(2)(b) (**Board Review 9**). PO Laafar, Sgt. Serpani’s operator, testified that he was standing by the police car, approximately ten feet away from Sgt. Serpani, § 87(2)(b) and § 87(2)(b) and therefore could not hear any of the conversation that took place between them (**Board Review 10**).

During his statement to the CCRB, Sgt. Serpani confirmed that § 87(2)(b) identified herself as a court officer (**Board Review 11**). However, Sgt. Serpani denied ever calling § 87(2)(b) a, “low life § 87(2)(b)”. § 87(2)(g)

Therefore, it is recommended that **Allegation A** be closed as **unsubstantiated**.

Allegation B: Sergeant Alexi Serpani acted discourteously towards § 87(2)(b)

While in front of the front desk inside the 68th Precinct stationhouse, § 87(2)(b) and § 87(2)(b) both testified seeing Sgt. Serpani remove § 87(2)(b) handcuffs from her bag, hold them in front of her face, and say, “You won’t be needing these anymore.” Sgt. James Wilson, who was working at the front desk, testified that he did not recall seeing any handcuffs being removed from any civilian’s bag that evening and he did not recall any civilian or officer mentioning that § 87(2)(b) was a court officer (**Board Review 12**). Sgt. Wilson testified that he did not recall seeing Sgt. Serpani hold handcuffs in front of § 87(2)(b) face and say, “You won’t be needing these anymore.” PO Alexander Arasin also testified that he did not

recover handcuffs from § 87(2)(b) bag and that he did not see any officer recover handcuffs from § 87(2)(b) belongings at any point (**Board Review 13**).

In his statement to the CCRB, Sgt. Serpani testified that he recovered handcuffs and a § 87(2)(b) officer identification card from § 87(2)(b) while at the stationhouse and that no other officer handled the handcuffs before Sgt. Serpani placed them inside a mailbox. However, Sgt. Serpani denied ever holding the handcuffs in front of § 87(2)(b) face and saying, “You won’t be needing these anymore.” § 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

Therefore, it is recommended that **Allegation B** be closed as **unsubstantiated**.

Squad: **9**

Investigator:	_____	_____	_____
	Signature	Print	Date

Squad Leader:	_____	_____	_____
	Title/Signature	Print	Date

Reviewer:	_____	_____	_____
	Title/Signature	Print	Date